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Case Number: 25STCV20558 Hearing Date: September 10, 2026 Dept: 307

17 TENTATIVE RULING 9:15 a.m., Thursday, Sept. 10, 2026

PATRICK

SHERMAN, et al. v. JOSEPH GUGLIUZZA [25STCV20558]

PLAINTIFFS/CROSS-DEFENDANTS

PATRICK SHERMAN AND ALISON SHERMAN'S DEMURRER AND MOTION TO STRIKE AS TO THE
FIRST AMENDED CROSS-COMPLAINT

MEET AND

CONFER: OK. Complies with CCP 430.41

TIMELINE:

Real property dispute between neighbors

Plaintiffs/Cross-Defendants

Patrick Sherman and Alison Sherman (the "Shermans"), husband and wife, own a single-family residence located at 25732 Vista Verde Drive, Calabasas, CA 91302 (the "Sherman Property"). Their neighbor, Defendant/Cross-Complainant Joseph Gugliuzza ("Gugliuzza") owns the residential real property located at 25734 Punto De Vista Drive, Calabasas, CA 91302 (the "Gugliuzza Property"), which abuts the Sherman Property. Cross-Complainant Elizabeth Price ("Price" or collectively with Gugliuzza, "Cross-Complainants") is the domestic partner of Gugliuzza and also resides at the Gugliuzza Property.

August 2022: The Shermans begin to engage in conduct designed to harass and annoy Gugliuzza, including flying drones across the Gugliuzza Property, using cameras to take pictures of Gugliuzza and Price

outside on the Gugliuzza Property, shining bright lights onto the Gugliuzza Property, cutting trees on the Gugliuzza Property without permission, storing unsightly items in full view of the Gugliuzza Property, constructing a pool without drainage which resulted in the flooding of the Gugliuzza Property, installing a shed violating of setback requirements, and installing loud pool equipment.

Late 2024: The Shermans discover that Gugliuzza had claimed the right to occupy, use, and encroach upon the Sherman Property. The Shermans inform Gugliuzza of the boundaries of the Sherman Property and direct Gugliuzza to not encroach upon, occupy, or use any portion of the Sherman Property.

Mid-2025: The Shermans discover that Gugliuzza had placed a ladder and four trash containers on the Sherman Property. The Shermans direct Gugliuzza to remove the encroachments and refrain from further encroachment on the Sherman Property. The Shermans then construct a fence on the property line between the Sherman Property and the Gugliuzza Property.

7/6/2025: Gugliuzza removes the Shermans' fence, damaging it in the process. Gugliuzza replaces the four trash containers and ladder back onto the Sherman Property.

7/11/2025: The Shermans file the Complaint. The operative First Amended Verified Complaint ("FAC"), filed 9/25/2025, alleges causes of action for:

1. Quiet Title
2. Trespass
3. Ejectment
4. Nuisance
5. Declaratory Relief

10/28/2025: Gugliuzza and Price file a Cross-Complaint. The operative First Amended Verified Cross-Complaint ("FAXC"), filed 4/27/2026, alleges causes of action for:

1. Quiet Title
2. Prescriptive Easement
3. Equitable Easement
4. Declaratory Relief
5. Nuisance
6. Trespass
7. Invasion of Privacy (Violation of Civil Code section 1708.8)[1]
8. Invasion of Privacy (Common Law)
9. Ejectment

7/20/2026: The Shermans file this Demurrer with a Motion to Strike as to the FAXC, which is followed by Cross-Complainants' Opposition (8/19/2026) and the Shermans' Reply (8/31/2026).

TENTATIVE

RULING: PLAINTIFF/CROSS-DEFENDANTS PATRICK SHERMAN AND ALISON SHERMAN'S DEMURRER is SUSTAINED with LEAVE TO AMEND in part, SUSTAINED without leave to amend in part, and OVERRULED in part.

PLAINTIFF/CROSS-DEFENDANTS

PATRICK SHERMAN AND ALISON SHERMAN'S MOTION TO STRIKE is GRANTED with LEAVE TO AMEND in part and without leave to amend in part.

I. DEMURRER TO THE FAXC

The Shermans demur to Cross-Complainants' first, third, and fifth through ninth causes of action in the FAXC pursuant to Code of Civil Procedure section 430.10, subds. (e) and (f).

A.

1st

Cause of Action: Quiet Title – SUSTAINED with LEAVE TO AMEND

Gugliuzza's

first cause of action against the Shermans to quiet title is insufficiently pled. When stating a claim for quiet title for real property, the pleading must be verified and include the following: (a) a description of the subject property, including its legal description and street address or common designation, if any; (b) the title of the plaintiff as to which a determination is sought and the basis of title; (c) the adverse claims to the title against which a determination is sought; (d) the date as of which the determination is sought; and (e) a prayer for the determination of the title of the plaintiff against the adverse claims. (Code Civ. Proc., § 761.020.)

Here,

Gugliuzza seeks to quiet title to the "Prescriptive Use Area" of the Sherman Property, which is vaguely defined as "five feet from the center of a utility pole" which Gugliuzza has used to store four trash cans and yard equipment and landscaping. (FAXC, ¶¶ 7-8.) Gugliuzza also seeks to quiet title to "the Gugliuzza Property" and the "Sherman Encroachment," which is vaguely defined as "a portion of a rock wall on the Sherman Property [that] encroaches onto the Gugliuzza Property." (Id. ¶ 7.) There is no dispute that the Shermans are the owners of the Sherman Property, while Gugliuzza is the owner of the Gugliuzza Property. (Id. ¶¶ 2-3.)

With

respect to the Prescriptive Use Area, the Shermans argue that quieting title is not the appropriate relief because Gugliuzza does not seek to establish an ownership claim but a right to use the Prescriptive Use Area. However, Code of Civil Procedure section 760.020 permits an action to establish title against adverse claims to "any interest" in real or personal property. (Code Civ. Proc., § 760.020.) California courts have repeatedly recognized claims to quiet title to a portion of land over which a plaintiff claims to have obtained a prescriptive easement. (See e.g. *King v. Wu* (2013) 218 Cal.App.4th 1211, 1212; *Felgenhauer v. Soni* (2004) 121 Cal.App.4th 445, 447; *Arciero Ranches v. Meza* (1993) 17 Cal.App.4th 114, 116.) The Shermans provide no legal authority for their assertion that a quiet title claim is generally inapplicable to the Prescriptive Use Area. Should Gugliuzza establish the existence of a prescriptive easement on the Sherman Property, he would be entitled to pursue a

claim to quiet title to the easement.

Notwithstanding,

the issue with Gugliuzza's quiet title claim is that it is not sufficiently specific with respect to the description of the subject property over which he seeks to quiet title. With respect to the Prescriptive Use Area, Gugliuzza does not identify its relative location on the Sherman Property, the location of the "utility pole," or the dimensions of the alleged easement. With respect to the general reference to the Gugliuzza Property, it is entirely uncertain what portions of the Gugliuzza Property over which the Shermans assert adverse title and whether this is limited only to the portions of the rock wall. With respect to the Sherman Encroachment, Gugliuzza also fails to identify the relative location of the encroaching rock wall on the Gugliuzza Property or the dimensions of the encroachment. The photographs provided in Exhibit B fail to make any reference to the point at which the rock wall allegedly encroaches on the Gugliuzza Property. Finally, the legal descriptions of the Sherman Property and the Gugliuzza Property at large, attached as Exhibit A to the FAXC, do not clarify with the requisite level of specificity the disputed portions within the respective properties. The Court cannot meaningfully quiet title to portions of the parties' properties based on such vague and uncertain legal descriptions of the relevant sub-parcels.

Therefore,

the Shermans' demurrer to the first cause of action in the FAXC is SUSTAINED with LEAVE TO AMEND.

B.

3rd

Cause of Action: Equitable Easement – SUSTAINED with LEAVE TO AMEND

Gugliuzza's

third cause of action against the Shermans is insufficiently pled. A trial court may exercise its discretion to grant an equitable easement where the following elements are established: (1) the encroachment must be "innocent" rather than "willful or negligent," (2) the rights of the public cannot be harmed and the burdened landlord cannot suffer "irreparable injury," regardless of the injury to the trespasser, and (3) the hardship of the trespasser from the order to remove the encroachment must be "greatly disproportionate" to the hardship caused to the owner by the continuance of the encroachment. (Hansen v. Sandridge Partners, L.P. (2018) 22 Cal.App.5th 1020, 1027–1028.)

The

Shermans argue that a claim for an equitable easement is not an independent cause of action, but merely a defense to an alleged encroachment. However, the same authority on which the Shermons rely contradicts this conclusion. In *Tashakori v. Lakis* (2011) 196 Cal.App.4th 1003 (*Tashakori*), the Court of Appeal explains that in “most” of the decisions granting an equitable easement, “the theory was raised by an encroaching defendant as a defense to a plaintiff’s claim seeking the removal of the encroachment.” (*Id.* at p. 1010.) However, the *Tashakori* court concluded that the plaintiffs could properly assert an equitable easement claim and that it would simply be “construed as a request for declaratory relief.” (*Id.* at p. 1011.) As the court explained, “[t]he fact that the equitable easement claim is not denominated as a request for declaratory relief is inconsequential,” because the court looks to the facts pleaded not the title of the cause of action or the prayer for relief. (*Ibid.*)

Notwithstanding,

Gugliuzza has already pled an independent cause of action for declaratory relief seeking an easement on the Sherman Property based on the same underlying facts asserted to support his equitable easement claim. The Shermons are not challenging Gugliuzza’s declaratory relief claim. Under the *Tashakori* reasoning, Plaintiff is essentially asserting two claims for declaratory relief based on the same underlying factual allegations. Thus, the third and fourth causes of action should be construed as a single cause of action.

Therefore,

the Shermons’ demurrer to the third cause of action for an equitable easement is SUSTAINED with LEAVE TO AMEND, limited to incorporating the allegations supporting the third and fourth causes of action into a single cause of action for declaratory relief.

C.

5th

Cause of Action: Nuisance – OVERRULED in part (with respect to Gugliuzza) and SUSTAINED with LEAVE TO AMEND in part (with respect to Price)

Cross-Complainants’

fifth cause of action against the Shermons is adequately pled with respect to Gugliuzza, but Price fails to allege that she has standing to assert the

nuisance claim. To plead a claim for private nuisance, a plaintiff must allege that:

(1) the defendant interfered with the plaintiff's use and enjoyment of the plaintiff's property, (2) the invasion of the plaintiff's interest in their use and enjoyment of the land was "substantial" (i.e. it caused plaintiff to suffer substantial actual damage), and (3) the interference with the plaintiff's protected interest was "unreasonable" (i.e. it must be of such nature, duration, or amount as to constitute unreasonable interference with the plaintiff's use and enjoyment of their land). (San Diego Gas & Elec. Co. v. Superior Ct. (1996) 13 Cal. 4th 893, 938.) "The degree of harm is to be judged by an objective standard," considering what effect the invasion would have on persons of normal health and sensibilities living in the same community. (Ibid.)

For

pleading purposes, the Court finds that Gugliuzza has alleged sufficient facts to suggest that the Shermans' conduct caused a substantial and unreasonable interference with Gugliuzza's use and enjoyment of the Gugliuzza Property. Specifically, Gugliuzza alleges that for a period of three years, the Shermans have caused repeated flooding on the Gugliuzza Property, have directed a "glaring" spotlight onto the jacuzzi on the Gugliuzza Property, have flown a drone over the Gugliuzza Property to take pictures of Gugliuzza's family and guests, have encroached onto the Gugliuzza Property with a shed and portions of a rock wall, and have operated loud pool equipment on their property line. (FAXC, ¶¶ 11, 32.) Gugliuzza further alleges that he and his family did not consent to this conduct and it has been a substantial factor in causing them harm. (Id. ¶¶ 34.) While the Shermans argue that "ordinary disputes between neighboring property owners" do not "automatically" constitute a private nuisance, they provide no legal authority suggesting that the alleged intrusions are categorically insufficient to constitute a nuisance action between neighbors. (Mot., at p. 10.) In this case, the scope of the actual harm and the reasonableness of the intrusion present factual questions that cannot be resolved at the demurrer stage. Furthermore, even if any one of the alleged property intrusions were insufficient to constitute a private nuisance, a demurrer cannot be sustained as to only parts of a cause of action.

Therefore,
the Shermans' demurrer to the fifth cause of action for nuisance against
Gugliuzza is OVERRULED.

The
Shermans also argue that Price lacks standing to assert a private nuisance
claim because she is not alleged to be a co-owner of the Gugliuzza Property. (Mot.,
at p. 11.) "Although 'any interest sufficient to be dignified as a property
right' will support an action based on a private nuisance, and this includes
within its purview a tenancy for a term, such right does not inure in favor of
a licensee, lodger or employee." (Venuto v. Owens-Corning Fiberglas Corp. (1971)
22 Cal.App.3d 116, 125.) Here, the FAXC concedes that Gugliuzza is the
owner of the Gugliuzza Property, whereas Price is only a resident at the
Gugliuzza Property. (FAXC, ¶¶ 2-3.) Price does not specifically allege that her
residence arises from any cognizable property right, such as a landlord-tenant
relationship with Gugliuzza. Mere permission to be present on the Gugliuzza
Property as a lodger or licensee does not confer the type of possessory
interest necessary to assert a nuisance claim in connection to a property.

Notably,
because there is legal authority for the premise that the right to quiet
enjoyment of premises extends to resident family members of the property owner
(see e.g. Birke v. Oakwood Worldwide (2009) 169 Cal.App.4th 1540, 1551),
the rights of a registered domestic partner would likely be treated
comparable to that of a spouse and confer a quasi-marital property interest in
the Gugliuzza Property to Price through Gugliuzza. Even so, Price does not
allege the registration status of her domestic partnership with Gugliuzza, so
as it stands, the FAXC lacks sufficient facts to conclude that Price's mere
residence at the Gugliuzza Property confers standing to assert a nuisance claim.

Therefore,
the Shermans' demurrer to the fifth cause of action for nuisance against Price
is SUSTAINED with LEAVE TO AMEND.

D.

6th

Cause of Action: Trespass – OVERRULED

Gugliuzza's

sixth cause of action against the Shermans is sufficiently pled. To succeed in

a cause of action for trespass, a plaintiff must establish: (1) the plaintiff's ownership or control of the property, (2) the defendant's intentional, reckless, or negligent entry onto the property, (3) lack of permission of entry or actions in excess of permission, (4) harm, and (5) that the defendant's conduct was a substantial factor in causing the harm. (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 262, citing CACI No., 2000.)

Here,

Gugliuzza alleges that the Shermans have repeatedly trespassed onto the Gugliuzza Property by: (1) flying drones over the property at a low altitude, (2) causing flooding on the property, and (3) encroaching on the property with a portion of the rock wall, which begins on the Sherman Property but stretches onto the Gugliuzza Property. (FAXC, ¶¶ 40-41.) The Shermans argue that none of these allegations establish an "unlawful entry" by the Shermans onto the Gugliuzza Property. (Mot., at p. 12.) Nevertheless, California law establishes that physical entry by the defendants themselves is not required to state a trespass claim. (Wilson v. Interlake Steel Co. (1982) 32 Cal.3d 229, 232 ["The rule has evolved in California that trespass may be committed by consequential and indirect injury as well as by direct and forcible injury."]; Elton v. Anheuser-Busch Beverage Group, Inc. (1996) 50 Cal.App.4th 1301, 1306 ["The interference need not take the form of a personal entry onto the property by the wrongdoer. Instead, it 'may be accomplished by the casting of substances or objects upon the plaintiff's property from without its boundaries.'"].)

In this

case, if the Shermans intentionally, recklessly, or negligently caused the drone, leaking water, or the rock wall to intrude onto the Gugliuzza Property, such an intrusion would be sufficient to constitute an "unlawful entry" for the purposes of trespass. Indeed, Gugliuzza has alleged sufficient facts to infer that the Shermans' entries onto the Gugliuzza Property were done "intentionally" (FAXC, ¶¶ 39, 42.) Gugliuzza also specifically alleges that the drones were flown for the purpose of taking pictures on the Gugliuzza Property and were "calculated" to harass Gugliuzza and his family, suggesting that this entry was intentional. (Id. ¶¶ 11, 40.) Whether Gugliuzza will be able to set forth evidence to show that each of the three alleged trespasses were truly intentional is not a question for the pleading stage.

Therefore,

the Shermans' demurrer to the sixth cause of action for trespass is **OVERRULED**.

E.

7th

Cause of Action: Invasion of Privacy (Civil Code section 1708.8) – OVERRULED

Cross-Complainants'

seventh cause of action against the Shermans is adequately pled. Under Civil Code section 1708.8, subd. (a), "[a] person is liable for physical invasion of privacy when the person knowingly enters onto the land or into the airspace above the land of another person without permission or otherwise commits a trespass in order to capture any type of visual image, sound recording, or other physical impression of the plaintiff engaging in a private, personal, or familial activity and the invasion occurs in a manner that is offensive to a reasonable person." (Civ. Code, § 1708.8, subd. (a).)

Here, Cross-Complainants

allege that the Shermans violated Civil Code section 1708.8 by repeatedly flying drones over the Gugliuzza Property, at a low altitude, for the purpose of taking pictures of Gugliuzza, Price, and their family members and guests "as part of a calculated plan to harass and otherwise annoy" Cross-Complainants. (FAXC, ¶ 48.) It is further alleged that the Shermans, in fact, captured visual images and other physical impressions of Gugliuzza and Price while engaging in private, personal, familial activity on the Gugliuzza Property, which could not have been obtained without the alleged trespass and/or the use of the drone. (Id. ¶¶ 48-49.)

First, the

Shermans argue that Cross-Complainants fail to allege any physical invasion or trespass by the Shermans. (Mot., at p. 14.) As described above with respect to Gugliuzza's trespass claim, the alleged invasion of the Gugliuzza Property via drone is sufficient to establish that a trespass occurred. (See *supra*, Section I.D.) Cross-Complainants have alleged that the Shermans used a drone to fly over the Gugliuzza Property at a "low altitude" which reasonably constitutes an entry "into the airspace above the land" under the meaning of Civil Code section 1708.8. The Shermans' contention that Gugliuzza and Price should have alleged where the drone traveled, the altitude at which it operated, or whether it physically entered protected airspace is unpersuasive. (Mot., at p. 14; see FAXC, ¶ 48.)

Second,

the Shermans argument that Cross-Complainants fail to allege that they were engaged in a private, personal, or familial activity is incorrect. (Mot., at pp. 14-15; see FAXC, ¶ 49.) Gugliuzza and Price plainly allege that the Shermans captured photographs of their family using the private outdoor spaces of their residence while engaging in “private, personal, familial activity” with family members and guests in a manner that could not have been obtained without the trespass. (Id. ¶¶ 48-49.) The Shermans offer no legal authority for their unsupported contention that there is, categorically speaking, no reasonable expectation of privacy when using the outdoor areas of a residential property which are otherwise inaccessible to non-residents without trespass. The sole authority cited by the Shermans involved a dispute between neighbors in which only a “small portion of plaintiffs’ backyard” could be seen from the neighbors’ security camera and recordings of “few words and phrases could be understood” when spoken at elevated volumes. (Mezger v. Bick (2021) 66 Cal.App.5th 76, 88 (Mezger).) Mezger did not, however, involve intrusions into private outdoor areas that could not otherwise be captured without trespass. For pleading purposes, Cross-Complainants have alleged sufficient facts to infer that they had a reasonable expectation of privacy in the areas of their yard where they could not have reasonably anticipated to be photographed.

Ultimately,

the Court finds that the Shermans arguments challenging the seventh cause of action are unavailing. Cross-Complainants have alleged sufficient ultimate facts to state the elements of a claim against the Shermans for a violation of Civil Code section 1708.8, subd. (a). Therefore, the Shermans’ demurrer to the seventh cause of action is **OVERRULED**.

F.

8th

Cause of Action: Invasion of Privacy (Common Law) –**OVERRULED**

Cross-Complainants’

eighth cause of action against the Shermans is adequately pled. To establish a common law cause of action for invasion of privacy based on an alleged intrusion onto property, a plaintiff must allege: (1) that the plaintiff had a reasonable expectation of privacy in the property, (2) that the defendant intentionally intruded onto the property, (3) that the defendant’s intrusion would be highly offensive to a reasonable person, (4) that the plaintiff was harmed, and (5) that defendant’s conduct was a

substantial factor in causing the plaintiff's harm. (CACI No., 1800; see *Lewis v. Superior Court* (2017) 3 Cal.5th 561, 571–572.) The “invasion of privacy” tort encompasses both physical intrusion, such as intrusion into the home, as well as non-physical or “sensory” intrusions. (*Shulman v. Group W Productions, Inc.* (1998) 18 Cal.4th 200, 230–231.)

Here, Cross-Complainants

allege that the Shermans invaded their privacy on the Gugliuzza Property by: (1) repeatedly flying drones over the Gugliuzza Property at a low altitude, for the purpose of taking pictures of Cross-Complainants, and (2) using multiple security cameras pointed above a privacy fence at the direction of the Gugliuzza Property to capture non-public views into the backyard in order to harass and annoy Cross-Complainants. (FAXC, ¶ 53.)

First,

the Shermans argue that these allegations are insufficient to state a claim for common law invasion of privacy because they fail to indicate an invasion into a private location that would constitute a highly offensive intrusion. (Mot., at p. 16.) In deciding whether the plaintiff had a reasonable expectation of privacy in the matter, the factfinder must consider several factors, including: (1) the identity of the defendant; (2) the extent to which other persons had access to the private information; and (3) the means by which the intrusion occurred. (CACI No., 1800.) In deciding whether the intrusion would be highly offensive to a reasonable person, the factfinder must consider several factors, including: (1) the extent of the intrusion; (2) the defendant's motives and goals; and (3) the setting in which the intrusion occurred. (Ibid.) Here, the Court finds that for pleading purposes, Cross-Complainants have alleged adequate facts to satisfy both of these elements.

The

Shermans rely on *Mezger*, supra, 66 Cal.App.5th to argue that there is no reasonable expectation of privacy in the outdoor space of a residential property. As discussed above, however, *Mezger* does not assert this brightline rule and *Mezger* is factually and procedurally distinguishable. (See supra, Section I.E.) In *Mezger*, the Court of Appeal affirmed an order granting summary adjudication in favor of the defendant neighbors based on a finding that no triable factual issues existed as to whether the neighbors' intrusion was highly offensive. (Id. at p. 87.) However, the *Mezger*

court noted that the moving defendants conceded that “residents have a right to privacy in their home and backyard.” (Ibid.) Moreover, the evidence suggested that the neighbors’ security camera recordings were not highly offensive because they only captured video and sound that could be accessed from their own property, and any video of the plaintiffs’ property was merely incidental to their interest in security. (Ibid.) By contrast, here, Cross-Complainants allege that the Shermans’ video cameras were “pointed directly into” the Gugliuzza Property and the Shermans used drones to intrude onto the Gugliuzza Property to capture images that would not have been accessible from the Sherman Property alone. (FAXC, ¶ 53.) Moreover, Cross-Complainants allege that the Shermans’ visual recording was intended to harass or annoy, rather than incidental to security purposes. For pleading purposes, these facts are sufficiently distinguishable from the circumstances in Mezger, at least to permit this cause of action to survive the pleading stage.

Second, the Shermans argue that the two privacy claims in the FAXC are time-barred. Based on the facts alleged on the face of the FAXC, the Court disagrees. Cross-Complainants allege that the Shermans’ conduct underlying the privacy claims is ongoing and began within the past three years. (FAXC, ¶¶ 32, 53.) It is further alleged that Gugliuzza and Price did not discover that the Shermans had been photographing them via drone until November 2024, which they received such photographs in their mailbox. (Id., ¶ 48.) Regardless of the applicable limitations period, however, the allegations of continuing violations through the present time precludes a finding that the privacy claims are necessarily time barred. (Id., ¶¶ 11, 53.) Ultimately, the Shermans’ statute of limitations defense presents factual questions that cannot be resolved on the pleadings.

Therefore, the Shermans’ demurrer to the eighth cause of action for common law invasion of privacy is **OVERRULED**.

G.

9th

Cause of Action: Ejectment – **SUSTAINED** without leave to amend

Cross-Complainants’

ninth cause of action against the Shermans is insufficiently pled. “The essential elements of an ejectment action are (1) the plaintiff’s valid

interest in the property and (2) the defendant's wrongful possession and withholding thereof." (2710 Sutter Ventures, LLC v. Millis (2022) 82 Cal.App.5th 842, 866.) The elements of "seizen, entry and ouster" are required to state a claim for ejectment. (Wilson v. Diche (1961) 192 Cal.App.2d 312, 314 (Wilson).)

Here, Cross-Complainants

seek to eject the Shermans from the "Sherman Encroachment" onto the Gugliuzza Property and the "shed that sits within three (3) feet of the property line." (FAXC, ¶¶ 59-60.) As discussed above, Price has not alleged adequate facts to show that she has a present possessory interest in the Gugliuzza Property to support any claim which relies on a legal interest in the property at issue, including this ejectment claim. (See supra, Section I.C.) Moreover, the alleged wrongful "possession" here is inadequate to state a claim for ejectment because there are no allegations of ouster. (See Wilson, supra, 192 Cal.App.2d at p. 314.) Cross-Complainants are not alleging true exclusion from their property by the Shermans, but rather, mere encroachments in connection with a boundary dispute that would be better remedied by quiet title, nuisance, or trespass claims, as already alleged above. (See e.g. Vowinckel v. N. Clark & Sons (1933) 217 Cal. 258, 262.)

Therefore,

the Shermans' demurrer to the ninth cause of action for ejectment is SUSTAINED without leave to amend.

II. MOTION

TO STRIKE – GRANTED with LEAVE TO AMEND in part and without leave to amend in part

The

Shermans move to strike Cross-Complainants' request for punitive damages and improper civil fines from the FAXC on the grounds that they are not a legally viable remedy and therefore improperly included in the pleading.

First, Cross-Complainants

seek punitive damages in connection with the fifth cause of action for nuisance, the sixth cause of action for trespass, the seventh and eighth causes of action for invasion of privacy, and the ninth cause of action for ejectment. (FAXC, ¶¶ 35, 42, 47, 50, 56, 63.) Based on the above ruling on the Shermans' demurrer to the ninth cause of action, the motion to strike the punitive damages with respect to the ninth cause of action

is deemed moot. With respect to Cross-Complainants' nuisance, trespass, and privacy claims, punitive damages are generally recoverable where "the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).)[2] California follows a heightened pleading standard for punitive damages—vague and conclusory allegations are insufficient. (G. D. Searle & Co. v. Superior Ct. (Ct. App. 1975) 49 Cal.App.3d 22, 29.)

Here, the

Court finds that Cross-Complainants' factual allegations are insufficient to support an inference of malice, oppression, or fraud. At most, Cross-Complainants conclude that each of the acts by the Shermans were "done with a conscious disregard for the rights of Cross-Complainants" and the Shermans are "guilty of fraud, oppression, and malice." (FAXC, ¶¶ 35, 42, 50, 56, 63.) These allegations are vague and largely conclusory, as they are not tailored specifically to each purportedly malicious act and the only factual support for each conclusion is a boilerplate partial recitation of the malice standard. Something more than these bare, conclusory allegations is required to state a claim for punitive damages.

Second,

Cross-Complainants seek civil fines in connection with their statutory privacy claim. (FAXC, ¶ 47; Prayer, ¶ 12.) Under Civil Code section 1708.8, subd. (d), "[a] person who comes within the description of this subdivision is also subject to a civil fine of not less than five thousand dollars (\$5,000) and not more than fifty thousand dollars (\$50,000)." (Civ. Code, § 1708.8, subd. (d).) However, under Civil Code section 1708.8, subd. (m), "[a] proceeding to recover the civil fines specified in subdivision (d) or (e) may be brought in any court of competent jurisdiction by a county counsel or city attorney." (Civ. Code, § 1708.8, subd. (m)(1), *italics added.*) In other words, Civil Code section 1708.8 does not authorize private litigants to recover civil fines as a remedy for a violation of this statutory framework. Cross-Complainants do not oppose this portion of the Shermans' motion to strike.

Therefore,

the Shermans' Motion to Strike is GRANTED with LEAVE TO AMEND with respect to Cross-Complainants' punitive damages request and without leave to amend with respect to Cross-Complainants' request for civil fines.

Plaintiffs/Cross-Defendants Patrick Sherman and Alison Sherman to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court website on 9/9/26 at 11 a.m.

[1] Cross-Complainants inadvertently cite Civil Code section 1708.08 in the FAXC, but the Court construes this citation as a typographical error which was clearly intended to identify Civil Code section 1708.8 as the statutory authority for their seventh cause of action.

[2] "Malice" may be demonstrated by allegations of conduct "intended by the defendant to cause injury to plaintiff, or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others." (Id., § 3294, subd. (c)(1).) "Oppression" may be demonstrated by allegations of "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Id., § 3294, subd. (c)(2).) "Fraud" may be demonstrated by allegations of "intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id., § 3294, subd. (c)(3).)